

Granite Heron's Initial Rule 50(a) Motion

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United States District Court for the Western District of North Carolina Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. Civil Action No. SYN-WDNC-24-CV-0520

At the close of Blue Ember's evidence, Granite Heron moves for judgment as a matter of law on causation only. The requested judgment is that Blue Ember has not supplied a legally sufficient evidentiary basis for a reasonable jury to find that the transport excursion caused rejection, replacement expense, and the claimed delay loss. This motion does not seek judgment on the affirmative defense of failure to mitigate.

Granite Heron does not ask the Court to decide the reasonableness of Blue Ember's response to Cobalt Finch, the amount of any net mitigation deduction, or whether an earlier campaign likely would have succeeded. Those matters remain for the jury under the separate mitigation instruction. The capacity evidence may provide context for later events, but it is not a ground for this motion.

The carrier specifies the causation deficiencies below to permit Blue Ember to identify responsive proof before submission. It preserves objections to damages and contract limits without converting those objections into additional grounds for pre-verdict judgment.

Governing standard and requested judgment

Rule 50(a) permits judgment only when a party has been fully heard on an issue and a reasonable jury lacks a legally sufficient basis to find for that party. The motion must state the judgment sought and the law and facts supporting it. Evidence and reasonable inferences are viewed in Blue Ember's favor without weighing credibility.

Granite Heron seeks judgment that the September 12 deviation was not shown to be a proximate and foreseeable cause of the entire claimed loss. The carrier acknowledges custody, the Fletcher power-transition failure, the fifty-four-minute monitor excursion, and delayed escalation. It argues those operational facts do not alone bridge product suitability, the quality decision, replacement scope, and program economics.

The motion is not directed to contract formation or the occurrence of an out-of-range event. Nor does it request a ruling on the jury's future evaluation of post-event conduct. If the Court denies the motion, Granite Heron may present its remaining causation evidence and may renew this same causation issue at the close of all evidence.

Validation suitability evidence

Blue Ember's assay exhibit confirms measurable activity in tested samples and does not establish universal inactivity. The lot's seals were intact, refrigeration recovered before departure from Fletcher, and no visible container failure was documented. Granite Heron contends those facts prevent a reasonable inference that the entire 1.35-million-dollar lot value was physically lost because of the excursion.

Blue Ember answers that validation suitability required documented continuous custody, not merely detectable activity in a sample. Its September 16 disposition cited the missing compliance record and unresolved uniformity. The carrier maintains that a business or quality decision following a deviation is not automatically a caused contractual loss, especially where limited research use and further assessment remained possible.

For this motion, Granite Heron asks the Court to evaluate whether Blue Ember's proof supplies the necessary causal bridge rather than treating the excursion itself as conclusive. It does not accuse quality personnel of dishonesty and does not claim authority to release the lot. The question presented is whether the admitted scientific and decision evidence legally supports attributing the stated consequences to the carrier.

Replacement and delay causation

The 850,000-dollar replacement ledger contains manufacturing, analytical, materials, labor, and disposition entries. Granite Heron argues that Blue Ember has not shown every retained item was incremental rather than ordinary development work. The removal of unsupported management time demonstrates why project coding alone does not resolve causation.

The two-million-dollar delay model relies on a development forecast, risk assumptions, milestone timing, and the March 3 Aurora Quay campaign. BE-214 had independent technical, financing, review, and market uncertainty. Granite Heron contends the evidence does not permit a reasonable jury to assign the entire bounded economic shift to one transport event with adequate foreseeability and certainty.

These arguments challenge the chain between deviation and gross loss. They do not ask for judgment based on a failure to pursue the Durham slot. Granite Heron recognizes that avoidable loss after an otherwise caused injury is governed by the separately charged affirmative defense. The current motion concerns whether Blue Ember first proved the loss was caused at all.

Express boundary and disposition

Granite Heron requests judgment on Blue Ember's contract claim because, in its view, the trial evidence cannot support causation for the claimed damages. In the alternative, it requests judgment excluding any gross component for which the Court finds no sufficient causal evidence. Contract-limit and evidentiary objections remain reserved to the extent previously ruled upon.

For clarity, the carrier is not moving under Rule 50(a) on mitigation. It does not contend in this motion that the Cobalt Finch offer requires a 1.5-million-dollar reduction, or any reduction, as a matter of law. It does not seek removal of the mitigation questions from the verdict form. Capability, qualification, decision risk, gross avoidance, alternative cost, and any net deduction remain factual matters for the jury.

Blue Ember opposed the causation motion on the record. The Court denied it without prejudice to renewal after all evidence, finding sufficient proof for the jury at that stage. This written memorial states the precise ground presented and does not add a theory after the ruling.